

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
IN AND FOR THE COUNTY OF SAN MATEO**

Law and Motion Calendar
Honorable David A. Silberman
800 North Humboldt Street, San Mateo, CA 94401
Department 11, Courtroom G
Monday July 20, 2026 at 2 pm

If you intend to appear on any case on this calendar, you must give notice by 4:00 pm the court day before the hearing to the newly assigned department pursuant to California Rules of Court, Rule 3.1308(a)(1), and San Mateo County L.R. 3.403(b).

Failure to comply with notice as outlined will result in no oral presentation.

Notice of Appearance and Courtesy Copies

1. Email Dept11@SanMateoCourt.org before 4:00 pm the court day before with a copy to all parties or their counsel of record. The email must include the name of the case, the case number, and the name of the party contesting the tentative ruling.
2. Courtesy Copies: You must email a copy of any reply brief, or an Opposition to a Motion for Summary Judgment in an Unlawful Detainer matter to:
LawAndMotionReplyBriefs@SanMateoCourt.org

Day of Hearing

Appearances can be In Person or Remote. If appearing remotely by Zoom, please use your first and last name and mute your audio until your case is called. All parties must use a device with a camera if you are appearing remotely. Please login to the zoom hearing by 1:50 pm.

Remote Appearance Zoom Information

RECORDING OF A COURT PROCEEDING IS STRICTLY PROHIBITED.

<https://sanmateocourt.zoomgov.com/> Meeting ID: 161 964 0802 Password: 734616

TO ASSIST THE COURT REPORTER, the parties are ORDERED to: (1) state their name each time they speak and only speak when directed by the Court; (2) not to interrupt the Court or anyone else; (3) speak slowly and clearly; (4) connect from a computer if at all possible, rather than a cell phone; (5) if a cell phone is absolutely necessary, the parties must be stationary and not driving or moving; (6) no speaker phones under any circumstances; (7) provide the name and citation of any cases referenced; and (8) spell all names, even common names.

Case	Title / Nature of Case
02:00 PM	
24-CIV-01474	MOHAN S CHEEMA VS. LUCID GROUP, USA, INC.
LINE 1	
MOHAN S. CHEEMA LUCID GROUP, USA, INC.	BENJAMIN DRAKE AMY MACLEAR

PLAINTIFF MOHAN CHEEMA'S MOTION FOR ATTORNEY'S FEES

TENTATIVE RULING:

The Motion of Plaintiff Mohan S. Cheema ("Plaintiff") for Attorneys' Fees is GRANTED IN PART.

Background

This is Plaintiff's second attorneys' fees motion. The court previously denied without prejudice Plaintiff's first attorneys' fees motion determining (among other deficiencies) that it could not evaluate the actual time reasonably incurred for this action based on Plaintiff's submitted evidence. (November 3, 2025 Minute Order.) The court denied Plaintiff's request for a 1.5 multiplier and also denied Defendant's request for a negative multiplier. (*Id.*)

In this second motion, Plaintiff seeks \$25,832 attorney's fees, along with (initially) a 1.3 multiplier, for a total of \$33,581.60. (Plaintiff's Notice of Motion.) However, Plaintiff acknowledges in reply that the court previously denied Plaintiff's request for a multiplier and asks the court to award fees instead of \$25,832. (Plaintiff's Reply, p. 9:17-18.)

Legal Standard

A buyer that prevails in an action under the Song-Beverly Act shall be allowed by the court to recover "attorney's fees based on actual time expended determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action." (Civil Code, § 1794, subd. (d).) The prevailing party has the burden of showing that the fees incurred were reasonably necessary to the conduct of the litigation, and were reasonable in amount. (*McKenzie v. Ford Motor Company* (2015) 238 Cal.App.4th 695, 703.) Trial courts have discretion in determining the value of the professional services rendered, and a fee award will not be disturbed on appeal unless the appellate court is convinced that it is clearly wrong. (*Id.*, at 703-704.)

A court assessing attorney fees begins with a lodestar figure based on the careful compilation of the time spent and reasonable hourly compensation of each attorney. (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1131-1132.) To determine "reasonable compensation," the court must carefully review the documentation of hours expended. (*Id.*, at p. 32.) Inefficient or duplicative efforts is not subject to compensation. (*Id.*) After the court determines a lodestar figure, it may be adjusted by the court based on a number of factors including "(1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, (4) the contingent nature of the fee award." (*Id.*)

The hourly rates are generally reasonable

The court previously denied without prejudice the motion for Plaintiff to address the qualifications of the attorneys and staff that worked on this case as well as their hourly rates. Plaintiff has now provided this information for the attorneys, paralegals and staff members. (Hensley Decl., pp. 4-6.) Plaintiff also claims that these hourly rates are reasonable based on a 2017-2018 attorney fee survey report. (Hensley Decl., Exh. D.) Defendant argues that in other cases, California courts have reduced the fees in a Song-Beverly action to as low as \$350 per hour, and that such a blended rate should apply here. However, four attorneys worked on this action with experience ranging from (ultimately) four years to up to twenty four years. The court declines to establish a blended rate. Defendant offers no other evidence as to what a reasonable hourly rate is based on the claimed years of experience. Thus, the court finds the claimed hourly rates are generally reasonable. However, Attorney Hensley was only barred for a few years, was new to the firm at the time this case began and does not describe any relevant Song-Beverly experience prior to joining the current firm. That, as well as a comparison of Attorney Hensley's rate(s) to those of the much more experienced attorneys and combined with the Court's understanding of reasonable rates, indicates a rate of \$400 per hour is more appropriate for Attorney Hensley (which the Court adopts), and the court reduces the requested fee accordingly by \$1500.

The time claimed warrants reductions

After reviewing the billing statements, Defendant's objections regarding the unreasonableness of the hours are well-taken.

This action was litigated (aside from attorney's fees issues) for approximately 3-4 months. Plaintiff filed this Complaint on March 6, 2024, and Defendant filed a motion to compel arbitration on April 17, 2024. Plaintiff did not oppose the motion to compel arbitration. Defendant served a section 998 offer on Plaintiff on June 3, 2024, and Plaintiff accepted on June 21, 2024. Therefore, much of the billing after Plaintiff accepted the section 998 offer is not reasonably claimed.

Romo's time - Defendant objects to time claimed for clerical tasks by General Manager Jennifer Romo on January 15, January 19, February 12, March 7 and March 8, 2024. The court agrees and reduces the fees by \$200.

Vague and/or duplicative billing – The court agrees that some of the entries are vague and/or appear duplicative. (See e.g., Hensley Decl., Exh. C, July 12 and 22, 2024 entries.) After reviewing the billing statements, the court reduces the fees by \$2,667.50 for this reason.

First attorneys' fees motion - Defendant objects because Plaintiff seeks \$7,022 fees for the 15.5 hours spent on the previously unsuccessful fees motion. Plaintiff also seeks 11.4 hours and \$5,700 for preparing this second motion. The court's prior Order ruled that a party is entitled to fees for drafting a fee motion. (See November 3, 2025 Order.) However, the court agrees that Defendant should not have to pay for the first motion when Plaintiff failed to submit proper evidence to support the requested fees. Therefore, the court reduces the fees by \$7,022. However, it finds Plaintiff is entitled to the requested fees for this second motion.

Fees for OSC for failure to timely file a dismissal after a conditional settlement – Defendant claims it prompted Plaintiff's counsel to timely file the notice of settlement, but Plaintiff did not do it. Instead, Plaintiff's counsel waited until May 2025 to file the first fees motion despite settlement of the case in June 2024. The court agrees with Defendant about reducing the fees for the multiple OSCs re dismissal that resulted in the additional, unnecessary fees. Accordingly, the court reduces the fees by \$1,550.

Based on the above, the court GRANTS Plaintiff attorneys' fees in the amount of \$12,892.50.

Plaintiff's and Defendant's requests for a multiplier are denied.

The court previously denied both Plaintiff's and Defendant's requests for a multiplier. These same requests for a multiplier arguably improperly seek reconsideration. No reconsideration motion has been filed and served, and neither party has presented new or different facts, circumstances or law to support reconsideration. (See Code Civ. Proc., § 1008.) Further, even if not improperly seeking reconsideration, the court finds no basis for a multiplier. These requests are DENIED.

02:00 PM

24-CIV-02662 ALEXANDER XUE VS. COSTCO WHOLESALE CORPORATION

LINE 2

ALEXANDER XUE
COSTCO WHOLESALE CORPORATION

PRO PER
ALECIA E. COTTON

DEFENDANT COSTCO WHOLESALE CORPORATION'S MOTION TO STRIKE AND ORDER FOR DISMISSAL

TENTATIVE RULING:

Defendant Costco Wholesale Corporation's unopposed motion to strike Plaintiff Alexander Xue's Second Amended Complaint ("SAC") is GRANTED.

Defendant's motion to dismiss this action under Code Civ. Proc. § 581(f)(2) is GRANTED.

Defendant's demurrer to Plaintiff's SAC is deemed MOOT.

On February 18, 2026, this Court issued an order sustaining Defendant's demurrer to Plaintiff's First Amended Complaint and granted Plaintiff "15 days from the service of notice of entry of this order to file and serve a Second Amended Complaint." (Order Sustaining Demurrer, February 18, 2026.) Defendant mailed notice of entry of the order to Plaintiff the following day, on February 19, 2026. Thus, Plaintiff's deadline to file an SAC was no later than March 11, 2026. Plaintiff filed the SAC on April 7, 2026.

A court may strike out all or any part of a pleading that is not in conformity "with the laws of this state, a court rule, or an order of the court." (Code Civ. Proc., § 436, subd. (b).) A plaintiff's "failure to file an amended complaint within the time allowed by the court subject[s] any subsequently filed pleading to a motion to strike, either by defendants or the court's own motion." (*Leader v. Health Indus. Of Am., Inc.* (2001) 89 Cal.App.4th 603, 613.) "Indeed, by virtue of its inherent power to prevent abuse of its processes, a trial court may strike an amended complaint filed in disregard of established procedural processes, and may strike an amended pleading because no request for permission to amend was sought." (*Id.*)

"A trial court's determinations to deny leave to file a belated amended pleading under section 473, subdivision (a)(1), to strike a pleading under section 436, and to dismiss an action under section 581, subdivision (f)(2)" are discretionary decisions. (*Id.* at 612).

Here, there is no question that Plaintiff filed his SAC late, on April 7, 2026, roughly one month after the deadline set by the Court. Plaintiff did not seek further leave from the Court prior to filing the amended complaint or after. Plaintiff has not opposed Defendant's motion to strike the SAC or Defendant's demurrer to the SAC. Defendant has moved for an order striking the late-filed amended pleading via a noticed motion, as required under Cal. Rules of Court, rule 3.1320(i).

It is of note that on July 15, 2026 (long after his opposition was due) Plaintiff did appear *ex parte* seeking leave to file a Third Amended Complaint and claimed that his delay in filing the Second Amended Complaint was due to some sort of computer failure sometime in March. The Court denied *ex parte* relief. Plaintiff also filed an extremely untimely opposition to this motion (also on July 15, 2026). The

Court need not consider and exercises its discretion not to consider that untimely opposition. Rule 3.1300 of the California Rules of Court. The same rules apply to Plaintiff despite his pro per status. *Rappleyea v. Campbell* (1994) 8 Cal. 4th 975, 984–85 (“[M]ere self-representation is not a ground for exceptionally lenient treatment. Except when a particular rule provides otherwise, the rules of civil procedure must apply equally to parties represented by counsel and those who forgo attorney representation.”).

It is notable that this motion is the result of the Plaintiff’s failure to timely comply with the Court’s Order setting a deadline on amendment and that the Plaintiff failed to file his papers in a timely fashion in relation to the demurrer that immediately preceded this motion (filing his papers nine days late and shortly before the hearing despite having months to prepare them). With that history in mind, Plaintiff’s excuses for not filing a timely opposition and claim that the delay in filing his Second Amended Complaint was due to some unspecific computer error are not worthy of credit. Plaintiff now has a demonstrated pattern of acting as if the rules do not apply to him.

Defendant’s motion to strike Plaintiff’s untimely SAC is GRANTED. Accordingly, Defendant’s demurrer is deemed MOOT.

Defendant has further moved for dismissal of this action. “The court may dismiss a complaint as to that defendant where. . . after demurrer to the complaint is sustained with leave to amend, the plaintiff fails to amend it within the time allowed by the court and either party moves for dismissal.” (Code Civ. Proc., § 581, subd. (f)(2).)

A defendant may simultaneously move to strike the pleading and dismiss the action; there is “[n]o reason . . . to require that additional time and expense be incurred in filing a separate motion to dismiss after the court has ordered the amended complaint stricken.” (*Leader*, 89 Cal.App.4th at 614.)

Accordingly, Defendant’s motion to dismiss this action is GRANTED, with prejudice. In exercising its discretion the Court has considered the length of the delay in filing the SAC (it was approximately a month (a meaningful delay), however Plaintiff actually had significantly more time than the Court intended because there was a one month delay between the hearing on the demurrer (which Plaintiff attended) and the entry of the Order); the Plaintiff’s conduct (which as described above was not reasonable); the excuse for the delay (which the court does not credit); the prejudice to the defendant (which is meaningful as the case is more than two years old and Plaintiff’s conduct has resulted in unnecessary motion practice); and the stage of the litigation (this is a simple case involving plaintiff’s challenge to Defendant’s return policy and a \$10 alcohol purchase three years ago that is still not at issue after more than two years).

Any party who contests a tentative ruling must email Dept.11@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for the prevailing party shall prepare for the Court’s signature a written order consistent with the Court’s ruling pursuant to California Rules of Court, rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the California Rules of Court. Please note that Local Rule 3.403(b)(iv) states in part “prevailing party on a tentative ruling is required to prepare a proposed order REPEATING VERBATIM the tentative ruling” (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the Court. **If the tentative is adopted the prevailing party shall also prepare a Judgment.**

02:00 PM

24-CIV-02662 ALEXANDER XUE VS. COSTCO WHOLESALE CORPORATION

LINE 3

ALEXANDER XUE
COSTCO WHOLESALE CORPORATION

PRO PER
ALECIA E. COTTON

DEFENDANT COSTCO WHOLESALE CORPORATION'S DEMURRER TO PLAINTIFF'S SECOND AMENDED COMPLAINT

TENTATIVE RULING:

Please refer to the tentative ruling for Line 2, which is hereby incorporated by reference and serves as the tentative ruling for Line 3.

02:00 PM

24-CIV-03420 KYNA LIM VS. CITY OF MENLO PARK

LINE 4

KYNA LIM
CITY OF MENLO PARK

PRO PER
NICHOLAS SYREN

DEFENDANT CITY OF MENLO PARK'S DEMURRER TO PLAINTIFF'S SECOND AMENDED COMPLAINT

TENTATIVE RULING:

Initially, the Court notes that Defendant has not provided the address for the hearing. Department 11 is located at 800 North Humboldt Street, San Mateo, CA 94401, Courtroom G. (See Cal. Rules of Court, rule 3.1110 [the Notice "must specify" the location of the hearing].)

The Court further notes that Plaintiff's proof of service of the opposing papers includes her declaration that she served the papers herself, which violates Code of Civil Procedure section 1013a, subdivision (1).

The Court finds that these errors caused no prejudice and/or the defects have been waived. But Plaintiff is cautioned that in the future, not to sign proofs of service herself.

Defendant's Demurrer is SUSTAINED WITHOUT LEAVE TO AMEND. Plaintiff's Request for Judicial Notice ("RJN") is discussed below.

Background

Per the allegations of the Second Amended Complaint ("SAC"), Defendant failed to maintain its tree (the "Tree") that was adjacent to her property, damaging her water and sewer lines and her foundation, resulting in economic and health-related damages. Plaintiff repeatedly reported the issues with the Tree to another city, believing it to be the responsible party. Plaintiff was redirected to Defendant in October 2023, but Defendant initially denied responsibility and told her that the Tree was not in its database. Only after Plaintiff provided mapping data did Defendant acknowledge its responsibility for the Tree and sidewalk, and order emergency removal of the Tree due to its poor structure and conflict with utilities.

Defendant demurs generally to the SAC, and to each of its causes of action.

Legal Standard

A general demurrer under Section 430.10(e) of the Code of Civil Procedure for failure to state a cause of action challenges defects that appear on the face of the pleading under attack; or from matters outside the pleading that are judicially noticeable. *Blank v. Kirwan* (1985) 39 C3d 311, 318.

"It is not necessary that the cause of action be the one intended by plaintiff. The test is whether the complaint states any valid claim entitling plaintiff to relief. Thus, plaintiff may be mistaken as to the nature of the case, or the legal theory on which plaintiff can prevail. But if the essential facts of some valid cause of action are alleged, the complaint is good against a general demurrer." Cal. Prac. Guide Civ. Pro. Before Trial Ch. 7(I)-A (citations omitted).

“For the purpose of testing the sufficiency of the cause of action, the demurrer admits the truth of all material facts properly pleaded (i.e., all ultimate facts alleged, but not contentions, deductions or conclusions of fact or law).” Cal. Prac. Guide Civ. Pro. Before Trial Ch. 7(I)-A (citations omitted).

Discussion

Defendant asserts that the allegations of the SAC establish that each of its causes of action is time-barred.

According to the SAC, in 2015, Plaintiff experienced root intrusion into her lateral sewer pipe which she had to hire a plumber to clear. While the SAC characterizes the root intrusion as involving “only small, hair-like roots” (SAC, 25:27; *see also* 125:5, & p.131 in Exh. V-1), the inspection transcript which Plaintiff includes and is considered part of the SAC, shows much more substantial intrusion at that time (*id.*, pp.131-33, in Exh. V-1). The plumbers’ comments as the camera moves through the pipe pass from “one small root intrusion” at 36 feet, through, “As we travel back. There’s going to be more and more roots in there,” to, “As you can see, it’s completely closing the pipe,” to, “here’s the last and final root intrusion point. There it is, the big guy, Alright, quite a bit of it,” to at 21 feet, “More and as you can see, there’s barely room for anything.” (*Id.*, pp.131-33, in Exh. V-1.) Moreover, the portion that Plaintiff quotes for the assertion that the sewer line was “nice and healthy” refers only to “the rest of the pipe.” (*Id.*, p.132, in Exh. V-1.)

Further, in 2015, Plaintiff was sufficiently concerned that the Tree might be the source of the problems that she asked the adjoining city, Redwood City, to remove it. Redwood City advised her that she needed to establish that the Tree was causing the problems she described before they would abate it. However, the SAC does not allege that Plaintiff applied for a public tree removal permit, nor filed a claim under the Government Claims Act with Redwood City, nor with Defendant, at any time before October 2023.

The SAC alleges that Plaintiff first contacted Defendant in October 2023. At that time, Defendant initially denied ownership, but before the end of the month realized that it did own the Tree, and removed it. Plaintiff submitted her claim under the Government Claims Act to Defendant on November 2, 2023, and filed the instant action on June 4, 2024.

The Effect of the Contradiction of the Allegations of the SAC by Its Exhibit

Where a pleading includes a general allegation, such as an allegation of an ultimate fact, as well as specific allegations that add details or explanatory facts, it is possible that a conflict or inconsistency will exist between the general allegation and the specific allegations. To handle these contradictions, California courts have adopted the principle that specific allegations in a complaint control over an inconsistent general allegation. Under this principle, it is possible that specific allegations will render a complaint defective when the general allegations, standing alone, might have been sufficient.

(*Perez v. Golden Empire Transit Dist.* (2012) 209 Cal.App.4th 1228, 1235-36 (citations omitted).)

Further, in ruling on demurrer, “facts appearing in exhibits attached to the complaint will also be accepted as true and, if contrary to the allegations in the pleading, will be given precedence.” (*Dodd v. Citizens Bank of Costa Mesa* (1990) 222 Cal.App.3d 1624, 1626-1627 (citation omitted).)

Statutes of Limitation

“A claim relating to a cause of action ... for injury to person or to personal property ... shall be presented ... not later than six months after the accrual of the cause of action.” (Gov. Code, § 911.2, subd. (a).)

Further, the statute of limitations for “[a]n action for trespass upon or injury to real property” is “[w]ithin three years.” (Code Civ. Proc., § 338, subd. (b).) Specifically as to the fifth cause of action for inverse condemnation, the statute of limitations is three years from accrual. (*Patrick Media Group, Inc. v. California Coastal Com.* (1992) 9 Cal.App.4th 592, 607 (citing Code Civ. Proc., § 338, subd. (j)).)

Accrual of a tort cause of action occurs once the tort has caused any amount of appreciable harm, even if the full extent of the harm is uncertain or will increase with time. (*Davies v. Krasna* (1975) 14 Cal.3d 502, 514 (overruled on other grounds, recognizing exemption of trade secrets from the appreciable harm requirement); *Lyles v. State of California* (2007) 153 Cal.App.4th 281, 286 (*Lyles*) (“A cause of action for inverse condemnation alleging property damage accrues... when the damage is sufficiently appreciable to a reasonable [person].” (internal quotation and citation omitted)).)

Defendant asserts that Plaintiff’s causes of action accrued in 2015, when the harm that she then realized prompted her to seek removal of the Tree. Plaintiff invokes the delayed discovery rule to argue that she actually was first appreciably harmed in 2023. The Court of Appeal explains the delayed discovery rule, discussing it in the context of inverse condemnation:

A cause of action for inverse condemnation alleging property damage accrues not necessarily on the date of the “taking,” but, rather, “when the damage is sufficiently appreciable to a reasonable man.” (*Mehl v. People ex rel. Dept. Pub. Wks.* (1975) 13 Cal.3d 710, 717, 119 Cal.Rptr. 625, 532 P.2d 489; see also *Oakes v. McCarthy* (1968) 267 Cal.App.2d 231, 254–256, 73 Cal.Rptr. 127 [statute runs from the time that noticeable damage occurs and reasonable notice is equated to knowledge].)

Here, the “taking” or damage occurred in February 1998 and plaintiffs knew about such at the time it happened. That plaintiffs believed that the damage resulted from natural causes does not affect these facts. Thus, plaintiffs’ damage was “sufficiently appreciable to a reasonable man” in February 1998. Since plaintiffs did not file this action until June 2004, this action is barred by the statute of limitations.

Plaintiffs contend that we should apply the discovery rule in lieu of the standard articulated in *Mehl* and *Oakes*. Plaintiffs continue that, if the discovery rule is applied, the statute of limitations does not begin until the time in 2003 when they learned that State might be responsible for the storm damage. They reason that they did not know that the damage was caused by wrongdoing until that time. But a discovery-rule analysis leads to the same conclusion.

Generally, a cause of action accrues for purposes of the statute of limitations, and the applicable limitations period begins to run, when the plaintiff has suffered damages from a wrongful act. However, this rule has an important exception, referred to as the discovery rule that “postpones accrual of a cause of action until the plaintiff discovers, or has reason to discover, the cause of action.” But the rule is not so broad as to delay accrual indefinitely until the plaintiff stumbles upon a claim. Rather, the plaintiff discovers the cause of action when he at least suspects a factual basis, as opposed to a legal theory, for its elements, even if he lacks knowledge thereof—when, simply put, he at least suspects

that someone has done something wrong to him, “wrong” being used, not in any technical sense, but rather in accordance with a lay understanding. Thus, under the discovery rule, the plaintiff need not be aware of the specific facts or legal theory necessary to establish the claim. *He or she need not even know the identity of the wrongdoer. Rather, the plaintiff need only be aware of his or her injury and have knowledge of sufficient facts to place him or her on actual or inquiry notice that the injury has a negligent cause.*

The Supreme Court has recently restated the rule: “A plaintiff has reason to discover a cause of action when he or she ‘has reason at least to suspect a factual basis for its elements.’ [Citations.] ... [¶] ... [¶] ... In other words, *plaintiffs are required to conduct a reasonable investigation after becoming aware of an injury, and are charged with knowledge of the information that would have been revealed by such an investigation.*”

(*Lyles, supra*, 153 Cal.App.4th 281, 286-87 (multiple citations omitted) (emphasis added).)

Here, the SAC shows that the damage of which the SAC complains was sufficiently appreciable to a reasonable person in 2015, even though the full extent of the harm (or the specific tree that caused it) may have been uncertain or increased with time. Plaintiff knew of the damage, and that she was uncertain as to its source does not affect these facts. Plaintiff reasons that she did not know that the damage was caused by the Tree or by Defendant until 2023, but she suspected a factual basis for her claims, even if she lacked certainty as to the tree that cause the damage or who owned it.

Thus, in 2015 she was required to conduct a reasonable investigation, and is charged with knowledge of the information that would have been revealed thereby. However, Plaintiff did not even promptly pursue claims against the only identified wrongdoer, Redwood City. Regardless whether Plaintiff’s confusion as to whether Redwood City or Menlo Park owned the Tree was at first reasonable, Plaintiff nonetheless was required timely take action. Further, she could have filed a claim and brought suit against Redwood City and Does, and later named Defendant as a Doe defendant. Instead, she essentially accepted opinions denying responsibility unhappily, but without investigating further. Though she appears *in propria persona*, Plaintiff is held to the same standards as is an attorney. (*Rappleyea v. Campbell* (1994) 8 Cal. 4th 975, 984–85 (“[M]ere self-representation is not a ground for exceptionally lenient treatment. Except when a particular rule provides otherwise, the rules of civil procedure must apply equally to parties represented by counsel and those who forgo attorney representation.”))

Equitable Estoppel

As to equitable estoppel, Defendant persuasively asserts that an affirmative act during a relevant time period is a required element, which is not clearly alleged. Here again, even if Plaintiff’s confusion as to whether Redwood City or Menlo Park owned the Tree was at first reasonable, Plaintiff nonetheless was required timely to file a claim under the Government Claims Act, even if with the wrong entity.

Continuing Trespass

Plaintiff has labeled only her third cause of action as “continuing” (trespass), but the labels do not concern the Court in ruling on demurrer. The Court examines whether the factual allegations of the SAC might support causes of action for both continuing nuisance and continuing trespass.

Then:

For permanent encroachments, the three-year statute of limitations begins to run on the date the encroachment began, and bars all claims brought after its passage. For continuing encroachments, a plaintiff may assert a claim even if the encroachment began outside the limitations period, but is limited to recovering damages incurred in the preceding three-year period.

(*Madani v. Rabinowitz* (2020) 45 Cal.App.5th 602, 605 (*Madani*).)

The Court determines that the factual allegations of the SAC support a cause of action for permanent, not continuous, trespass or nuisance, and thus are time-barred. As Defendant notes:

the SAC repeatedly alleges that the sewer lateral perforation and associated leaking has permanently diminished the value of Plaintiff's property. *See, e.g.*, SAC at 55:16-26; 80:18-19; 84:3-4; 98:6; 123:23-25. Such allegations are a direct, binding admission that the trespass—i.e., the root perforation of the sewer lateral and associated leakage is not abatable—since if it was, the measure of damages would be the abatement cost rather than the diminution in value.

(Reply, 9:24-10:1.) Moreover, the SAC frames Plaintiff's damages as "stigma" damages, which is the very term that the Court of Appeal uses in explaining (with reference to a federal Court applying California law) that such damages flow from a permanent rather than continuous trespass or nuisance:

the district court noted [that] diminution in value damages, caused by stigma associated with a property with a history of contamination, would likely have been recoverable had its claim for permanent trespass and nuisance not been barred by the statute of limitations.

...

[T]he weight of California courts which have spoken to this issue have rejected attempts to recover such damages under continuing trespass or continuing nuisance theories. *It is easy to see why*. The principal assumption underlying continuing trespass and continuing nuisance theories is that the activity causing the injury can be abated. Thus, the damages are distinct from those arising from conduct constituting permanent trespass and permanent nuisance. To accept [the plaintiff's] reasoning would permit parties seeking recovery for time-barred permanent trespass and permanent nuisance claims to avoid the statute of limitations simply by recharacterizing them as continuing trespass and continuing nuisance claims. The Court cannot permit the statute of limitations to be eviscerated in this fashion.

(*Santa Fe Partnership v. ARCO* (1996) 46 Cal.App.4th 967, 979-980 (quoting *F.D.I.C. v. Jackson-Shaw Partners No. 46 Ltd.* (N.D.Cal. 1994) 850 F.Supp. 839) (emphasis added).)

Finding that its causes of action are time-barred, the Court SUSTAINS the Demurrer to the SAC, WITHOUT LEAVE TO AMEND as further described below. Accordingly, the other grounds asserted need not be reached.

Plaintiff's Request for Judicial Notice

In light of the Court's findings *supra*, Plaintiff's RJN need not be reached. Nonetheless, regarding Plaintiff's Exhibit A, the request is GRANTED as to the requested portions of the Menlo Park Municipal Code.

Regarding Exhibits D, the request is GRANTED as to Exhibit D-1. There is no Exhibit D-2. The request is DENIED as to Exhibit D-3, which is not file-stamped and thus does not appear in the Court's records. The request is GRANTED as to Exhibit D-4, and DENIED as to Exhibit D-5. However, judicial notice of Exhibits D-1 and D-4 is limited to their existence, content, and authenticity, and does not extend to the truth of the factual matters contained therein. (*Dominguez v. Bonta* (2022) 87 Cal.App.5th 389, 400.)

As to Exhibits B, C, and E, the request is DENIED.

Leave to Amend

"It is an abuse of discretion for the court to deny leave to amend where there is any reasonable possibility that plaintiff can state a good cause of action... But the court should deny leave to amend where the facts are not in dispute and no liability exists under substantive law... It is not up to the judge to figure out how the complaint can be amended to state a cause of action. Rather, the burden is on plaintiff to show *in what manner* plaintiff can amend the complaint, and *how* that amendment will change the legal effect of the pleading." Cal. Prac. Guide Civ. Pro. Before Trial Ch. 7(I)-A (citations omitted).

While opposing the demurrer and repeatedly asking for leave to amend, Plaintiff has failed to identify any facts that Plaintiff contends Plaintiff could allege and that would cure the legal defects in the Second Amendment Complaint. This lawsuit is more than two years old and based on the facts Plaintiff has already alleged it seems highly unlikely that she will be able to plead around the very untimely nature of the lawsuit. Accordingly, leave to amend is tentatively DENIED as futile.

However, if Plaintiff believes it is possible to address the deficiencies identified in this tentative, Plaintiff must contest the tentative and appear to explain in reasonable detail what facts Plaintiff can allege to cure. If Plaintiff does, the Court will consider those facts and reconsider granting leave.

Any party who contests a tentative ruling must email Dept.11@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for the prevailing party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to California Rules of Court, rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the California Rules of Court. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a

proposed order REPEATING VERBATIM the tentative ruling” (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the Court.

02:00 PM

25-CIV-04294

MONICA LOUIE, ET AL. VS. HIGHGATE HOTELS, L.P., ET AL.

LINE 5

MONICA LOUIE
HIGHGATE HOTELS, L.P.

WILLIAM J. HOODY
KEVEN STEINBERG

PLAINTIFF MONICA LOUIE'S MOTION TO QUASH OR MODIFY THE DEPOSITION SUBPOENA FOR PRODUCTION OF BUSINESS RECORDS SERVED ON KAISER FOUNDATION HEALTH PLAN, INC.

TENTATIVE RULING:

Plaintiff Monica Louie's two substantively similar and unopposed motions for orders quashing or modifying the Deposition Subpoenas for Production of Business Records issued by Defendants Highgate Hotels, L.P.; Grand Prix Belmont LLC; Hyatt Corporation; and Grand Prix Fixed Lessee LLC (hereinafter "Defendants") to Kaiser Permanente Clinic and Hospital — Northern California, 25 North Via Monte, Walnut Creek, California 94598 and Kaiser Foundation Health Plan, Inc. are GRANTED IN PART.

Plaintiff's requests for protective orders limiting future discovery is DENIED as exceeding the scope of the instant motion.

Background

This is a negligence action arising from Plaintiff Monica Louie's fall and subsequent injuries incurred while she and her husband, Plaintiff Michael Louie, were paying residential guests of Defendants' property.

Plaintiff brings the instant motion on the grounds that the Defendants' subpoena to her health provider seeking twelve years of Plaintiff's complete medical records without limitation as to body part, medical condition or relevance to the injuries at issue in this litigation is overbroad and therefore violates her constitutional right to privacy under Article I, Section 1 of the California Constitution, invades the physician-patient privilege (Evidence Code §§ 990-1007), and seeks records that are neither relevant nor reasonably calculated to lead to the discovery of admissible evidence.

Plaintiff's motion requests that the Court modify the subpoena to limit the scope of production to medical records concerning plaintiff's lower legs, including her ankle bones and tendons in the lower leg area, and records reflecting the care, treatment, diagnosis, or evaluation of injuries reasonably related to those body parts. Plaintiff also requests that the Court enter a protective order limiting further discovery consistent with this suggested narrowed scope. The motion is unopposed.

Discussion

Code of Civil Procedure section 1987.1, subdivision (a), authorizes the court to "make an order quashing the subpoena entirely, modifying it, or directing compliance with it upon those terms or conditions as the court shall declare, including protective orders." A plaintiff who is a party to the action may bring a motion to quash or modify a deposition subpoena for production of business records directed to a third party under this section. (Code Civ. Proc. § 1987.1, subd. (b)(1).)

It is well-settled that the state and federal constitutional rights to privacy include one's personal medical records. (*Britt v. Superior Court* (1978) 20 Cal.3d 844, 855-856 (*Britt*).) However, it is equally well settled that "the scope of the inquiry permitted depends upon the nature of the injuries which the patient-litigant himself has brought before the court." *Id.* at 864 [quoting from *In re Lifschutz* (1970) 2 Cal.3d 415, 435].) The exception has been generally applied only to compel disclosure of medical treatment and communication concerning the very injury or impairment that was the subject matter of the litigation. (*In re Lifschutz* (1970) 2 Cal.3d 415, 434 (*Lifschutz*).)

Where the party filing an action has arguably waived the privacy in their protected or privileged information by filing a lawsuit, the waiver must be construed such that discovery is only permitted of those matters relevant to the party's claims. (*Britt, supra*, 20 Cal.3d at 858-859.) Accordingly, a plaintiff may still assert privacy rights as to physical and mental conditions unrelated to the claimed injury. (*Britt, supra*, at 864.)

Here, plaintiff has placed discrete orthopedic injuries to her ankles and lower legs at issue. There is no evidence that she has waived any privileges as to unrelated conditions that may be documented in her entire Kaiser records. Therefore, to the extent the subpoena seeks such records for conditions unrelated to Plaintiff's ankles and lower legs, the Court finds it invades the physician-patient privilege pursuant to the reasoning set forth in *Lifschutz* and *Britt*. Moreover, the Court finds the breadth of information sought exceeds what is reasonably calculated to lead to admissible evidence regarding Plaintiff's relevant medical damages. (Code Civ. Proc., §§ 2017.010, 2017.020.) Accordingly, the motions to modify the subpoenas and limit scope of production are GRANTED as follows:

Scope is limited to

- Medical records, billing records, claims records, payment records, radiological films, and other documents concerning the care, treatment, diagnosis, prognosis, consultation, and/or findings related to Plaintiff Monica Louie's lower legs, including her ankle bones and tendons in the lower leg area, or records reflecting the care, treatment, diagnosis, or evaluation of injuries reasonably related to those body parts; and
- limited in time from July 21, 2013, to present.

Because the motions are unopposed, the Court declines to address potential arguments which plaintiff speculates could be made by Defendants, including the impact of pre-existing medical conditions or whether the loss of consortium claim potentially expands the scope of discovery.

The Court is aware that the plaintiff has four additional motions to quash pending. The Court on its own Motion hereby sets and Orders an Informal Discovery Conference ("IDC") before the Civil Commissioner in this case. The Court would note the following:

1. Local Rule 3.700(a) states: "In all general civil cases as defined by CRC Rule 1.6(4), parties and non-parties are encouraged to hold an Informal Discovery Conference with the Court prior to filing a motion to compel or any other discovery motion."
 2. Dept. 11 views IDCs as an important prerequisite to the filing and hearing of most if not all discovery motions.
-

3. On July 20, 2026, the Court adjudicated two motions to quash but Plaintiff previously filed **four other motions to quash** calendared for November 2, 2026 and January 25, 2026, without holding an IDC.
4. All parties by and through their respective counsel are ordered to participate in the IDC in good faith (see IDC instructions below).
5. **An IDC is now scheduled for August 12, 2026, at 4 p.m.**
6. If the IDC results in a resolution the underlying motions, the moving party should e-file a Notice of Withdrawal or a Stipulation to Vacate (or continue) and Order.

The IDC is with Department 30, the Civil Commissioner. Counsel for the parties shall appear by Zoom video, credentials are below. This Conference is scheduled for 30 minutes but may last an hour.

The parties shall, jointly or separately, email correspondence to the Court at IDC@sanmateocourt.org, and contemporaneously to all parties, an electronic letter of no more than five (5) pages, without attachments, summarizing the discovery dispute(s) within five (5) calendar days of this notice. It shall include on the first line (i) the case name and number, and (ii) the date and time reserved by the parties for the Informal Discovery Conference. All emails to the Court must CC all parties or attorneys of record.

Questions regarding the IDC, including all requests to continue or reset the IDC due to a calendar conflict, should all be directed to the IDC Clerk at IDC@sanmateocourt.org.

IDC ZOOM CREDENTIALS:	
Meeting ID: 161 510 6013 PASSWORD: 987732	Courtroom H

Any party who contests a tentative ruling must email Dept.11@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for the prevailing party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to California Rules of Court, rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the California Rules of Court. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order REPEATING VERBATIM the tentative ruling" (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the Court.

02:00 PM

25-CIV-04294 MONICA LOUIE, ET AL. VS. HIGHGATE HOTELS, L.P., ET AL.

LINE 6

MONICA LOUIE
HIGHGATE HOTELS, L.P.

WILLIAM J. HOOS
KEVEN STEINBERG

PLAINTIFF MONICA LOUIE'S MOTION TO QUASH OR MODIFY THE DEPOSITION SUBPOENA FOR PRODUCTION OF
BUSINESS RECORDS SERVED ON KAISER PERMANENTE CLINIC AND HOSPITAL NORTHERN CALIFORNIA

TENTATIVE RULING:

Please refer to the tentative ruling for Line 5, which is hereby incorporated by reference and serves as the
tentative ruling for Line 6.

**UD LAW AND MOTION CALENDAR
MONDAY, JULY 20, 2026**

02:00 PM

26-UDL-00598 THE JOHN STEWART COMPANY VS. ELIANA MEDINA

LINE 7

THE JOHN STEWART COMPANY
ELIANA MEDINA

MERCEDES A. GAVIN
PRO PER

PLAINTIFF JOHN STEWART COMPANY'S MOTION TO COMPEL DEFENDANT ELIANA MEDINA'S RESPONSES TO PLAINTIFF'S FORM INTERROGATORIES - GENERAL, SET ONE, REQUEST FOR PRODUCTION OF DOCUMENTS, SET ONE, TO DEEM ADMITTED REQUEST FOR ADMISSIONS, SET ONE AND REQUEST FOR SANCTIONS AGAINST DEFENDANT ELIANA MEDINA IN THE AMOUNT OF \$585.00

TENTATIVE RULING:

Plaintiff The John Stewart Co.'s ("TJS") Motion to Compel Defendant Eliana Medina ("Defendant")'s Responses to Discovery, Deem Admitted Requests for Admissions, and Request for Sanctions, filed July 6, 2026, is GRANTED.

This is essentially a renewed motion. On July 6, 2026, the Court denied Plaintiff's prior motion to compel without prejudice, on grounds that Plaintiff had not filed a Proof of Service demonstrating that Defendant was served with the Summons at least ten (10) days before Plaintiff served the underlying discovery requests.

On July 6, 2026, Plaintiff filed a Proof of Service, which states that on May 22, 2026, Defendant was personally served with the Summons. On June 9, 2026, Plaintiff served Defendant with the subject discovery requests (form interrogatories (Set One), requests for production of documents (Set One), and requests for admission (Set One). Thus, the discovery requests were timely served.

In an unlawful detainer proceeding, responses to interrogatories, inspection demands, and requests for admission must be served five days from service of the requests. Code Civ. Proc. § 2030.260 (b), § 2031.260 (b), § 2033.250 (b). If timely responses to interrogatories or inspection demands are not served, the responding party waives any objection to the interrogatories or demands and the propounding party may move for an order compelling responses. Id. § 2030.290 (a) & (b) and § 2031.300 (a) & (b). If timely responses to requests for admission are not served, the responding party waives any objection to the requests and the propounding party may move for an order deeming the truth of the matters specified in the requests admitted. Id. § 2033.280 (a) & (b). A court must grant this latter order unless it finds that a proposed response to the requests that substantially complies with Code of Civil Procedure section 2033.220 has been served. Id. § 2033.280 (c).

TJS presents evidence that it served its respective first sets of form interrogatories, inspection demands, and requests for admission on Defendant by express mail on June 9, 2026. July 6, 2026 Declaration of

Mercedes Gavin (“Gavin Decl.”) ¶¶ 2–5, exhs. 1–4. Defendant’s responses were therefore due no later than June 16, 2026. Code Civ. Proc. § 1013 (b) (service by express or overnight mail extends deadline by two court days). As of July 6, 2026, Defendant had not served any responses, and there is no indication any responses have been served since. Gavin Decl. ¶ 6.

Accordingly, Defendant is ordered to provide responses without objections to the interrogatories and inspection demands served upon her by TJS on June 9, 2026, no later than five (5) days after service of written notice of entry of a formal order. In addition, the truth of the matters in TJS’s first set of requests for admissions, as set forth in attachment 1 to exhibit 3 of the supporting Mercedes Gavin declaration, is hereby deemed admitted by Defendant.

TJS also requests the imposition of monetary sanctions against Defendant for her failure to respond to discovery. Failing to respond or to submit to an authorized method of discovery is a misuse of the discovery process supporting the imposition of monetary sanctions. Code Civ. Proc. § 2023.010 and § 2023.030 (a). TJS presents evidence showing it incurred reasonable expenses of \$585.00—in the form of \$525.00 in attorney fees and \$60.00 to bring the instant motion—as a result of Defendant’s misuse of discovery. Accordingly, Defendant is ordered to pay \$585.00 in monetary sanctions to TJS no later than thirty (30) days after service of written notice of entry of the formal order.

Any party who contests a tentative ruling must email Dept.11@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for the prevailing party shall prepare for the Court’s signature a written order consistent with the Court’s ruling pursuant to California Rules of Court, rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the California Rules of Court. Please note that Local Rule 3.403(b)(iv) states in part “prevailing party on a tentative ruling is required to prepare a proposed order REPEATING VERBATIM the tentative ruling” (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the Court.

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